

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: August 10, 2015

TYPE OF DOCUMENT: (XORDINANCE) (_RESOLUTION) (_PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (_LEASE/CONTRACT) (CHANGE ORDER/CONTRACT
MODIFICATION) (_CONSIDER BID) (APPLICATIONS/LICENSES/PERMITS)
(APPOINTMENTS) (_ANNOUNCEMENTS/REPORTS/MOTIONS) (_OTHER)

SPONSORS: (ORDINANCE OR RESOLUTION) Bryan Cook

EXACT WORDING FOR AGENDA: An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1 Medium-Density Residential-Established and NB Neighborhood Business to NB Neighborhood Business for the west 80-feet of Lots 49 and 50 and all those parts of the west 80-feet of Lots 47 and 48 lying and being north of Randall Avenue, Block 7, Amended Plat of Holdrege's Addition, Second Filing, Cheyenne Wyoming, to be known as Holdrege's Addition, Fourth Filing (located at the northeast corner of the intersection of Randall and Snyder Avenues).

(1% Sales Tax Funding/Years) N/A

(Other Funding _____) (Grant _____)

CONTACT PERSON: Logan Graves PHONE: 637-6352 DEPT: Planning

OTHER CITY DEPARTMENT AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	(<u> </u>)	(<u> </u>)	(<u>X</u>)
Were Bids called for?	(<u> </u>)	(<u> </u>)	(<u>X</u>)
Affected parties notified of Council procedure and dates?	(<u>X</u>)	(<u> </u>)	(<u> </u>)
Has bond, insurance or other security been arranged?	(<u> </u>)	(<u> </u>)	(<u>X</u>)
Have legal descriptions been checked?	(<u>X</u>)	(<u> </u>)	(<u> </u>)

Agenda Item approved / reviewed by :

Risk Mgr () City Attorney () Dept. Head (X)

General Comments: The City of Cheyenne Planning Commission recommended approval of the above described Zone Change at their meeting on August 3, 2015, by a vote of 6-0. See the attached staff report for more definitive information.

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Submitted by: Brandon Cammarata Title: Director Date: August 5, 2015

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Engineering Tech Branch City Clerk's Office

Development Office

ORDINANCE NO. _____

Date: 7/29/15

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM MR-1 MEDIUM-DENSITY RESIDENTIAL-ESTABLISHED AND NB NEIGHBORHOOD BUSINESS TO NB NEIGHBORHOOD BUSINESS FOR THE WEST 80 FEET OF LOTS 49 AND 50 AND ALL THOSE PARTS OF THE WEST 80 FEET OF LOTS 47 AND 48, BLOCK 7 LYING AND BEING NORTH OF RANDALL AVENUE, HOLDREGE'S ADDITION, SECOND FILING, CHEYENNE WYOMING, TO BE KNOWN AS HOLDREGE'S ADDITION, FOURTH FILING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF RANDALL AND SNYDER AVENUES)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on August 3, 2015, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as the west 80 feet of Lots 49 and 50 and all those parts of the west 80 feet of Lots 47 and 48 [lying and being] north of Randall Avenue, Block 7, Amended Plat of Holdrege's Addition, Second Filing, Cheyenne Wyoming, Fourth Filing, is hereby changed to NB Neighborhood Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated *Holdrege's Addition, Fourth Filing* final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

3RD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

Holdrege's Addition, Fourth Filing

Zone District Map Amendment Process

CASE NUMBER(s): UDC-15-00412

SUBDIVISION CODE: HOL

PREPARED BY: Logan Graves

MEETING DATES: August 3, 2015 – Planning Commission

August 10, 2015 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

RECOMMENDATION: The Development Office recommends approval of the zone change request from MR-1 Medium-Density Residential-Established to NB Neighborhood Business for property to be known as Holdrege's Addition, Fourth Filing.

PLANNING COMMISSION UPDATE (8/3/15): At its regular meeting on August 3, 2015, the Planning Commission voted to recommend approval of the Holdrege's Addition, Fourth Filing zone change, advancing it to the Governing Body.

CITY COUNCIL RECOMMENDATION: The Development Department recommends approval of the zone change request from MR-1 Medium-Density Residential-Established to NB Neighborhood Business for properties to be known as Holdrege's Addition, Fourth Filing.

STAFF REPORT

Holdrege's Addition, Fourth Filing

Zone District Map Amendment Process

CASE NUMBER(s): UDC-15-00412 **SUBDIVISION CODE:** HOL
PREPARED BY: Logan Graves
MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

OWNER: Patricia Linehan
109 Princeton Road
Ft. Collins, CO 80525

Mini Mart Inc
No 115MM
442 Keeler Parkway
Pueblo, CO 81001

Doris M. Zolnoski Revocable Trust
6525 Foxglove Drive
Cheyenne, WY 82009

AGENT: Brad Emmons 307.637.6017
AVI Professional Corporation
1103 Old Town Lane
Cheyenne, WY 82009

PROJECT: Holdrege's Addition, Fourth Filing Zone Change

WORK DESCRIPTIONS: Zone change from MR-1 to NB

LOCATION:

1. Legal Description: A replat of the west 80-feet of Lots 49 and 50 and all those parts of the west 80-feet of Lots 47 and 48 lying and being north of Randall Avenue, Block 7, Amended Plat of Holdrege's Addition, Second Filing
2. Location: Northeast corner of Randall & Snyder Avenues
3. Address: 815 W 31st Street

SIZE: Total site:

CURRENT ZONING: MR-1 Medium-Density Residential-Established

PROPOSED ZONING: NB Neighborhood Business

EXISTING LAND USE: Automobile Service Station- Limited

PROPOSED LAND USE: Automobile Service Station- Limited

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	JURISDICTION
North	Residential	MR-1	City
South	Commercial/ Residential	MUR	City
East	Residential	MR-1	City
West	City ROW	MR-1	City

EXECUTIVE SUMMARY:

This Zoning Map Amendment proposes to change the zone for one lot located east of Snyder Avenue and south of West 31st Street. The applicant's site consists of three lots; the lot that is subject to this Zoning Map Amendment is zoned MR-1 Medium-Density Residential-Established. The two adjacent lots to the west and south of the subject site are zoned NB Neighborhood Business. The applicant is requesting to change the lot zoned MR-1 to NB in order to provide consistent zoning across the site. This zone change application was submitted in conjunction with an expedited preliminary plat application.

The applicant recently acquired the subject lot in order to make additional improvements-- a parking lot to serve the abutting convenience store. As proposed, the existing house would be demolished and a parking lot constructed. The subject lot is 3,600 square feet, with street frontage on West 31st Street. The combined area of the other two lots is 9,765 square feet. These two lots have frontage on Snyder and Randall Avenues and are developed with a 2,600 square foot convenience store and a canopied fuel island. The proposed parking lot will provide 7 additional parking stalls. This gas station/ convenience store has been a long-standing use and has existed in this location for over 50 years. The gas station is situated in a neighborhood that contains a variety of uses, including numerous commercial uses along Pershing, Snyder, and Randall.

Due to meeting the review criteria of section 2.2.1.d of the Cheyenne Unified Development Code (UDC), staff recommends approval of the zone change, advancing it to the Governing Body.

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE - The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Urban Residential Emphasis is the designation given to the subject area within ShapeCheyenne, which has the future land use map within PlanCheyenne. Urban Residential areas are intended for a variety of residential types, including single-family residences, duplexes, patio homes, townhomes, condominiums, and apartments. Secondary uses include open spaces and recreation, schools, places of worship, and other public or civic uses are encouraged. The NB zone district can work within the Urban Residential area. NB has more restrictions on the uses allowed and is intended to service the convenience shopping needs of a neighborhood. They are characterized by a compact scale and pedestrian-friendly design that provides ease of access from adjacent neighborhoods. PlanCheyenne supports enhancing and stabilizing existing neighborhoods, and investment in this longstanding commercial business contributes to this goal.

SURROUNDING AREA - The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The existing zoning is MR-1 Medium-Density Residential-Established. A designation of NB Neighborhood Business would maintain consistency with the adjacent two lots. As previously discussed, the NB Neighborhood Business zone district is able to fit within the context of the Urban Residential future land use designation and is therefore compatible with the comprehensive plan. In general, this neighborhood supports a wide variety of uses and a gas station at this property is an appropriate use. This is proven by the fact that the gas station has occupied the site for over 50 years.

ZONING: BASIC STANDARDS & USES - The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;

The current zoning of MR-1 is typically not appropriate for commercial uses and is intended for principally residential uses. The NB zoning already exists on this site and is appropriate for commercial sites that are integrated into neighborhoods. The proposed parking lot and site improvements of landscaping and pedestrian walkways are an upgrade to the property at a highly visible intersection. As proposed, additional landscaping and trees will be provided along all three street frontages. The proposed parking lot will also help relieve some of the current congestion and circulation issues present on site. Under the proposed NB Neighborhood Business zone district, the property would be able to be developed according to the standards of that district as laid out by the Cheyenne UDC.

STREETS & OPEN SPACE - The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;

The property should be able to be developed according to the standards in Section 4 of the UDC. No new Right-of-Way is being proposed with this project. Open Space will be further evaluated at the time of Site Plan review, at which time any requirements or exceptions thereto will be determined. The street network in this area is very robust with small blocks and multiple connections that accommodate a variety of uses and modes of transportation.

ZONING: INTENT, APPLICABILITY & DESIGN OBJECTIVES - The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

The NB Neighborhood Business zone district is intended for Retail, Employment, Service and Civic uses to support adjacent residential neighborhoods. This property would be able to meet that intent within the context of an Urban Residential land use in the area.

ZONING: FUTURE DEVELOPMENT - The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

This application is a zone change to consolidate the zoning across the subject site that is already being used as a gas station and convenience store. The consolidation of the zoning removes the uncertainty or potential confusion that may be caused by having residential zoning on a non-residential use.

REVIEWING AGENCIES W/ COMMENTS:

- Development Department (Brandon Cammarata)
- o Consistent zoning across a site is needed to assure logical and predictable application of requirements over time.

REVIEWING AGENCIES W/O COMMENTS:

- Engineering Department – General (Nathan Beauheim)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Metro Planning Office (Nancy Olson)
- Urban Planning (Matt Ashby)

REVIEWING AGENCIES NOT RESPONDING:

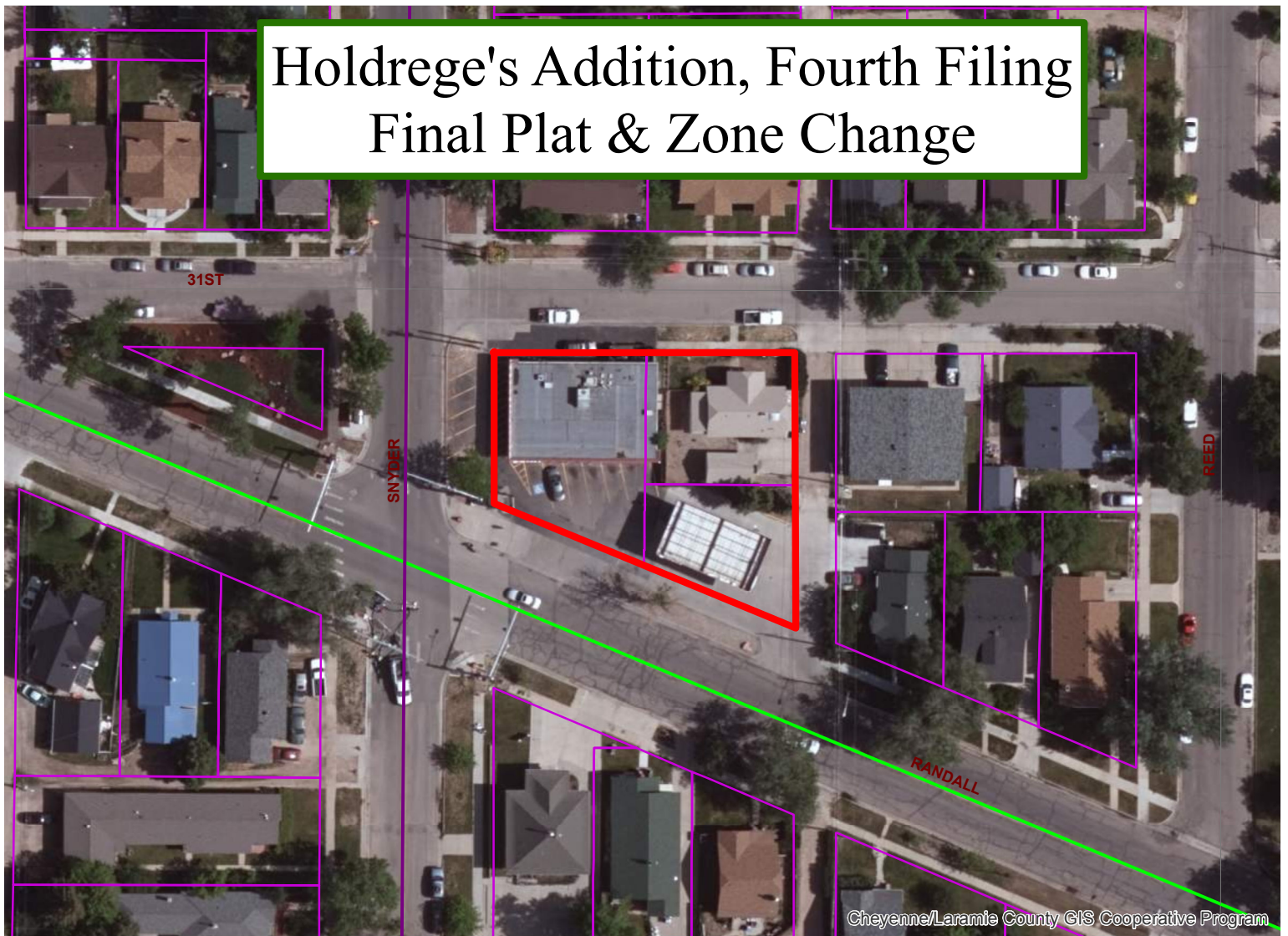
- None

OTHER COMMENTS RECEIVED:

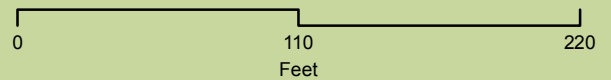
- None

cc: Owner
Agent/Applicant
File

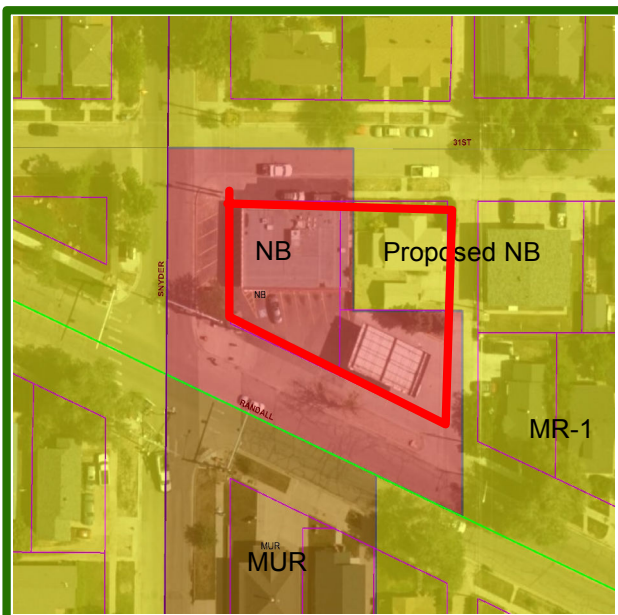
Holdrege's Addition, Fourth Filing Final Plat & Zone Change



Applicant: Doris Zolnoski, Patricia Linehan, Mini Mart No 115MM
 Agent: Brad Emmons, AVI Professional Corporation
 Application Numbers
 Final Plat: UDC-15-00411
 Zone Change: UDC-15-00412



Zone Districts

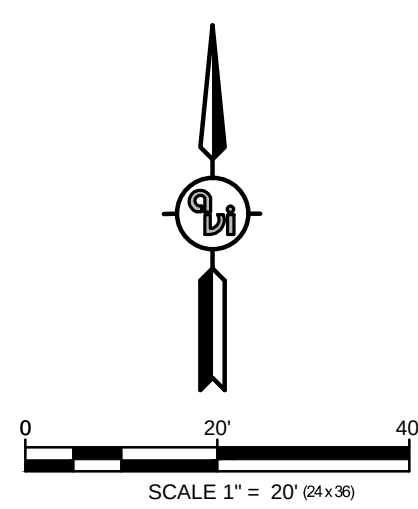
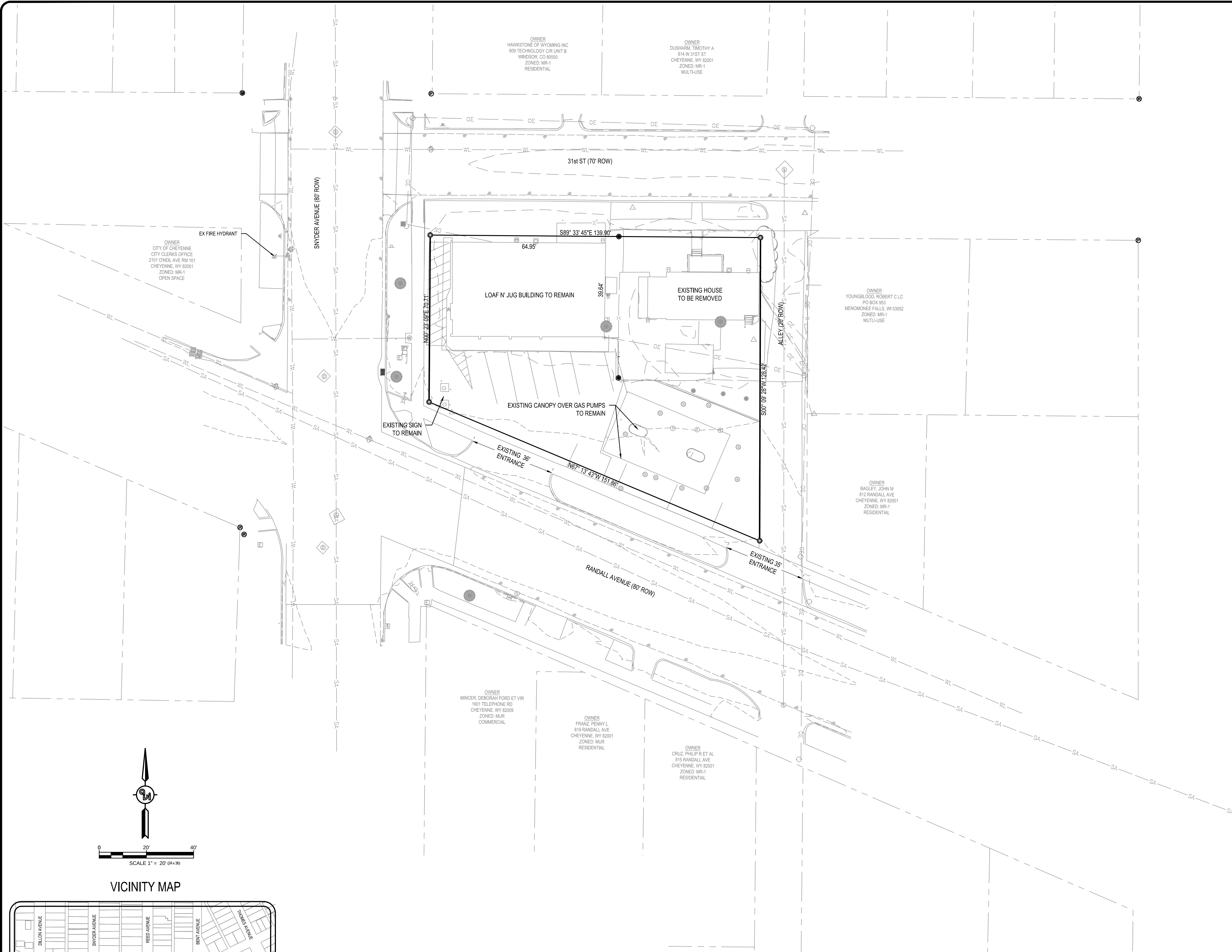


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Future Land Use



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VICINITY MAP



LEGAL DESCRIPTION

A PARCEL OF LAND BEING SITUATED IN A PORTION OF THE NORTHWEST ONE-QUARTER OF SECTION 36, TOWNSHIP 14 NORTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN, BEING A REPLAT OF THE WEST 80 FEET OF LOTS 49 AND 50 AND ALL THOSE PARTS OF THE WEST 80 FEET OF LOTS 47 AND 48 LYING AND BEING NORTH OF RANDALL AVENUE, BLOCK 7, AMENDED PLAT OF HOLDREGE'S ADDITION, SECOND FILING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF LOT 50 HOLDREGE'S ADDITION, SECOND FILING, THENCE ALONG THE SOUTH RIGHT OF WAY LINE OF 31st STREET S89°33'45"E A DISTANCE OF 139.90 FEET TO THE POINT, SAID POINT BEING THE POINT OF INTERSECTION OF SAID SOUTH RIGHT OF WAY LINE OF 31st STREET AND THE WEST LINE OF AN ALLEY;

THENCE ALONG THE WEST LINE OF SAID ALLEY S00°09'28"W A DISTANCE OF 128.42 FEET TO A POINT OF INTERSECTION OF SAID WEST LINE OF SAID ALLEY AND THE NORTH RIGHT OF WAY LINE OF RANDALL AVENUE;

THENCE ALONG SAID NORTH RIGHT OF WAY LINE N67°13'43"W A DISTANCE OF 151.86 FEET TO A POINT OF INTERSECTION OF SAID NORTH RIGHT OF WAY LINE OF RANDALL AVENUE AND THE EAST RIGHT OF WAY LINE OF SNYDER AVENUE;

THENCE ALONG SAID EAST RIGHT OF WAY LINE N00°23'09"E A DISTANCE OF 70.71 FEET MORE OR LESS TO THE POINT OF BEGINNING;

SAID PARCEL OF LAND CONTAINS 0.32 ACRES MORE OR LESS

NOTE

SITE IS A GAS STATION
TRIPS PER DAY - 2124

ZONING

CURRENT ZONING: NB AND MR-1
PROPOSED ZONING: NB

ZONE CHANGE
FOR
HOLDREGE'S ADDITION,
FOURTH FILING

A REPLAT OF THE WEST 80 FEET OF LOTS 49 AND 50 AND ALL THOSE PARTS OF THE WEST 80 FEET OF LOTS 47 AND 48 LYING AND BEING NORTH OF RANDALL AVENUE, BLOCK 7, AMENDED PLAT OF HOLDREGE'S ADDITION, SECOND FILING ALSO BEING SITUATED IN PORTIONS OF THE NE¼ OF SECTION 36, T14N, R67W OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING
PREPARED JUNE 2015

NO.	REVISION	DATE

PREPARED FOR:

LOAF AND JUG
442 KEELER
PUEBLO, CO 81001

PROJECT:

HOLDREGE'S ADDITION FOURTH FILING

DRAWING TITLE:

ZONE CHANGE



307.637.6017
1103 OLD TOWN LANE, SUITE 101
CHEYENNE, WY 82009
AVI@AVIPC.COM

DATE:

JUNE 2015

DRAWN BY:

CRJ

DESIGNED BY:

CHECKED BY:

JOB NO.:

3731

DRAWING NO.

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OF

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